

**APPENDIX A — INSEPARABLE PART OF THE SERVICE AGREEMENT
V1.00.000**

Software Licence & Subscription Agreement

Licence terms, user & driver subscriptions, and change control for iDeliver III

LICENSEE / CLIENT**3asari3**Represented by **Elie Khoury**, Owner**LICENSOR / DEVELOPER****_NXCORE**Represented by **Nicolas Chami**, Principal Engineer

Preamble & Relationship to the Service Agreement

This **Software Licence & Subscription Agreement** ("this **Appendix**" or "**Appendix A**") is made between **_NXCORE**, represented by **Nicolas Chami** (the "**Licensor**" or "**Developer**"), and **3asari3**, represented by **Elie Khoury** (the "**Licensee**" or "**Client**"), in respect of the delivery & logistics software known as **iDeliver III** (the "**Software**").

This Appendix forms an **integral and inseparable part** of the **iDeliver III Software Scope & Service Agreement, Version 1.00.000** (the "**Principal Agreement**"). It may not be detached from, assigned separately from, or relied upon in isolation from the Principal Agreement, and both documents are to be read together as a single agreement. Terms defined in the Principal Agreement carry the same meaning here unless expressly redefined.

Order of precedence. If there is any conflict between this Appendix and the body of the Principal Agreement on the specific subjects of licensing, user & driver subscriptions, or change pricing, this Appendix prevails. On all other subjects, the Principal Agreement prevails. There are no verbal terms; nothing outside these written documents binds either party.

A1. Definitions

- **Software / iDeliver III** — the complete delivery & logistics platform and its four modules, as described in the Principal Agreement, together with all updates provided under it.
- **Licence** — the limited right to use the Software granted in Article A2, subject to the restrictions in Article A3.
- **Call-Center User** — one named individual account authorised to sign in to the Operations Console / Call-Center (desktop) module.
- **Driver Seat** — one active driver enabled for live tracking and cash collection in the Driver Application within a Subscription Year.
- **Standard Package** — the included allotment of Call-Center Users and Driver Seats stated in Articles A5 and A6.
- **Subscription Year** — a period of twelve (12) consecutive months beginning on the Effective Date of this Appendix and on each anniversary thereof.
- **Additional User / Additional Driver** — any Call-Center User beyond six (6), or any Driver Seat beyond fifteen (15), enabled at any time during a Subscription Year.
- **Change Request** — any request to upgrade, extend, alter or add to the Software, as governed by Article A7 and Section 9 of the Principal Agreement.

A2. Grant of Licence

1. **Licence granted.** The Licensor grants the Licensee a **non-exclusive, non-transferable, non-sublicensable, revocable** licence to install and use the Software **solely for the internal delivery & logistics operations of 3asari3**, for the duration of the engagement and for as long as the applicable subscription fees are paid.
2. **Named business only.** The Licence is granted to 3asari3 as a single business entity at its own premises and accounts. It does not extend to any parent, subsidiary, affiliate, franchisee, branch operated under separate ownership, or any third party, without the Licensor's prior written consent.
3. **Ownership unchanged.** The Licence transfers **no ownership**. All intellectual property in the Software remains with **_NXCORE** at all times, as set out in Article A4 and Section 11 of the Principal Agreement.

A3. Licence Restrictions — Prohibited Acts

The Licensee **shall not**, and shall not permit or enable any employee, contractor, agent or third party to do any of the following, whether for payment or free of charge, in whole or in part:

1. **No selling.** Sell, resell, rent, lease, lend, assign, transfer, distribute or otherwise commercialise the Software, any copy, module, component, or the Licence itself.
2. **No sharing with others.** Share, disclose, provide access to, host for, or operate the Software on behalf of any other company, business, organisation or person outside 3asari3 — including competitors, partners, suppliers or affiliated businesses.
3. **No sublicensing.** Sublicense, franchise, white-label, rebrand, or offer the Software (or any capability of it) as a service, product or platform to any third party.
4. **No copying.** Copy, reproduce, republish, mirror or redistribute the Software, its screens, database schema, documentation or design, except a single reasonable backup where technically required for the Licensee's own use.
5. **No reverse engineering.** Decompile, disassemble, reverse engineer, extract source code, or attempt to derive the underlying ideas, algorithms, structure or database design, except to the limited extent such restriction is prohibited by mandatory applicable law.
6. **No modification by others.** Modify, adapt, translate, or create derivative works of the Software, or engage or allow any third party (including any other developer) to alter, maintain or extend it, without the Licensor's prior written consent.
7. **No competing use.** Use the Software, or any knowledge, data structure or know-how obtained from it, to build, train, assist or operate a competing or similar product, service or platform.
8. **No removal of notices.** Remove, obscure or alter any copyright, ownership, trademark or "Powered by _NXCORE" notice, watermark or attribution in the Software or its outputs.
9. **No circumvention.** Bypass, disable or tamper with any licence check, user/seat limit, security control, role restriction or usage measurement in the Software.
10. **No unauthorised access sharing.** Share user accounts or credentials; each Call-Center User account is for one named individual and must not be used concurrently by several people to avoid subscription fees.

Consequence of breach. Any breach of this Article is a **material breach**. The Licensor may, in addition to any other remedy, suspend or terminate the Licence immediately (Article A11), and the Licensee remains liable for all fees due and for any loss or damage caused by the breach.

A4. Ownership & Intellectual Property

1. All source code, object code, design, architecture, database schema, user interface, documentation, know-how and all intellectual property rights in iDeliver III are and remain the **exclusive property of _NXCORE**.
2. The Licensee receives only the limited Licence in Article A2. No rights are granted by implication, estoppel or otherwise beyond those expressly stated.
3. Operational business data entered by the Licensee (its orders, customers, contacts and transactions) belongs to the Licensee; the platform, software and structures that process that data belong to _NXCORE.

A5. Call-Center User Subscriptions

1. **Included Standard Package.** The Standard Package includes up to **six (6) Call-Center Users**, each charged at **USD 10.00 per user, per Subscription Year**.
2. **Additional Users.** Each Call-Center User enabled **beyond the sixth (6th)** is charged at **USD 15.00 per additional user, per Subscription Year**.
3. **Named accounts & measurement.** Users are counted by the number of enabled named accounts. Enabling a user at any point in a Subscription Year makes the full annual fee for that user payable for that year (no proration), unless otherwise agreed in writing.

CALL-CENTER USERS	PACKAGE	RATE / USER / YEAR
Users 1 – 6	Standard Package (included allotment)	USD 10.00
User 7 and above	Additional User	USD 15.00

Worked example: 6 users = 6 × USD 10.00 = USD 60.00 / year. 8 users = (6 × USD 10.00) + (2 × USD 15.00) = USD 90.00 / year.

A6. Driver Tracking Subscriptions

1. **Included allotment.** The Software's driver live-tracking subscription includes up to **fifteen (15) Driver Seats** per Subscription Year, as part of the Standard Package.
2. **Additional Drivers.** Each Driver Seat enabled **beyond the fifteenth (15th)** is charged at **USD 15.00 per additional driver, per Subscription Year**.
3. **Measurement.** Driver Seats are counted by the number of drivers enabled for tracking. Enabling a driver at any point in a Subscription Year makes the full annual fee for that driver payable for that year (no proration), unless otherwise agreed in writing.

DRIVER SEATS	PACKAGE	RATE / DRIVER / YEAR
Drivers 1 – 15	Standard Package (included allotment)	Included
Driver 16 and above	Additional Driver	USD 15.00

A7. Billing, Renewal & Non-Payment

1. **Annual billing.** Subscription fees under Articles A5 and A6 are invoiced **annually in advance** for each Subscription Year and are payable **upon receipt of invoice**.
2. **Mid-year additions.** Additional Users or Drivers enabled during a Subscription Year are invoiced when enabled and, thereafter, form part of the annual renewal.
3. **Renewal.** Subscriptions renew automatically for successive Subscription Years unless either party gives written notice of non-renewal at least **thirty (30) days** before the anniversary date.
4. **Non-payment.** If any subscription fee remains unpaid for **fifteen (15) days** after its due date, the Licensor may suspend access to the Software (in whole or in part) until payment is made. Continued non-payment is a material breach permitting termination under Article A11.
5. **Taxes & third-party fees.** Fees are exclusive of any applicable taxes. Third-party hosting, database, mapping and authentication charges are handled as stated in the Principal Agreement (Section 10).

A8. Upgrades & Change Requests

1. **Everything new is evaluated first.** Any request to **upgrade, extend, modify, redesign or add** to the Software — including new features, screens, reports, integrations, rules or additional modules — is a **Change Request** and is not included in the Licence or the subscription fees.
2. **Evaluation & estimate.** Upon a written Change Request, the Licensor will **evaluate** it and provide a written **estimate** setting out the scope, the effort/time, the price, and any effect on other features or timelines.
3. **Mutual written agreement before work.** No work on a Change Request begins until **both parties agree in writing** to the scope and price. Absent such written agreement, the Licensor has no obligation to perform the change and the Licensee has no expectation of delivery.
4. **Pricing.** Each Change Request is priced individually following evaluation. Change Requests are billed separately from, and in addition to, the Licence and subscription fees.
5. **Defects excluded.** Correction of a genuine Defect (a Scope-Baseline feature failing to work as described in the Principal Agreement) is **not** a Change Request and is handled under Section 10 of the Principal Agreement.
6. **Relationship to Principal Agreement.** This Article operates together with, and does not replace, the Change Control process in Section 9 of the Principal Agreement.

A9. Support, Maintenance & Updates

1. Defect support, optional maintenance, hosting and backups are governed by **Section 10 of the Principal Agreement**. This Appendix does not expand those obligations.
2. Routine updates the Licensor chooses to release are provided under the Licence; new functionality beyond the Scope Baseline remains a Change Request under Article A8.

A10. Confidentiality

1. Each party shall keep confidential all non-public information of the other obtained under this Appendix, including the Software's design, structure, pricing and business data, and shall use it only to perform this agreement.
2. The Licensee shall not disclose the Software, its screens or its workings to any competitor of the Licensor or to any party seeking to replicate it.
3. These obligations survive termination for as long as the information remains confidential.

A11. Term, Suspension & Termination

1. **Term.** This Appendix takes effect on its Effective Date and continues for as long as the Principal Agreement is in force and any subscription remains active.
2. **Termination for breach.** The Licensor may suspend or terminate the Licence immediately on written notice if the Licensee breaches Article A3 (Restrictions) or fails to pay fees when due and does not cure non-payment within the period in Article A7.4.
3. **Effect of termination.** On termination of the Licence, the Licensee shall **immediately cease all use** of the Software, stop accessing all modules, and, at the Licensor's request, remove installed copies. Fees accrued up to termination remain payable.
4. **Data on exit.** Handling and return/export of the Licensee's own business data on termination is as agreed in the Principal Agreement (Section 10).

A12. Warranties, Liability & General Terms

- 1. Warranty & liability.** The warranties and the limitation of liability in Section 12 of the Principal Agreement apply to this Appendix. The Licensor's total aggregate liability shall not exceed the fees paid by the Licensee under the Principal Agreement and this Appendix.
- 2. Compliance audit.** The Licensor may, on reasonable written notice, verify the number of enabled Call-Center Users and Driver Seats to confirm correct subscription. Any shortfall found is invoiced at the rates in Articles A5–A6.
- 3. No waiver.** A failure to enforce any term is not a waiver of it. Any waiver must be in writing.
- 4. Severability.** If any provision is held unenforceable, the remainder continues in full force, and the unenforceable provision is replaced by the closest enforceable term reflecting the parties' intent.
- 5. Assignment.** The Licensee may not assign or transfer this Appendix or the Licence. The Licensor may assign it to a successor of its business on written notice.
- 6. Notices.** Notices must be in writing (email is sufficient) to the parties' representatives named on the cover.
- 7. Entire agreement.** This Appendix together with the Principal Agreement is the entire agreement between the parties on its subject matter and supersedes all prior discussions. There are **no undocumented or verbal terms**.
- 8. Amendments.** Any amendment must be in writing and signed by both parties.
- 9. Governing law.** This Appendix is governed by the same law and jurisdiction as the Principal Agreement (Principal Agreement, Section 12), namely the laws of _____.

A13. Signatures

By signing below, the parties confirm that they have read, understood and agree to this Software Licence & Subscription Agreement (Appendix A), and acknowledge it as an inseparable part of the iDeliver III Software Scope & Service Agreement V1.00.000.

For the Licensee — 3asari3

Signature

Name	Elie Khoury
Title	Owner, 3asari3
Date	

For the Licensor — _NXCORE

Signature

Name	Nicolas Chami
Title	Principal Engineer, _NXCORE
Date	

Binding reference. This Appendix A (ref. NX-IDL3-LIC-A) is attached to and forms one document with the iDeliver III Software Scope & Service Agreement V1.00.000. Neither document is valid without the other where both have been executed.